

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

**X**

**DANITA ALLEN, ANGELICA ORTIZ, AARON ORTIZ,  
AND LATIEK FRAZER.**

**Plaintiffs,**

**-against-**

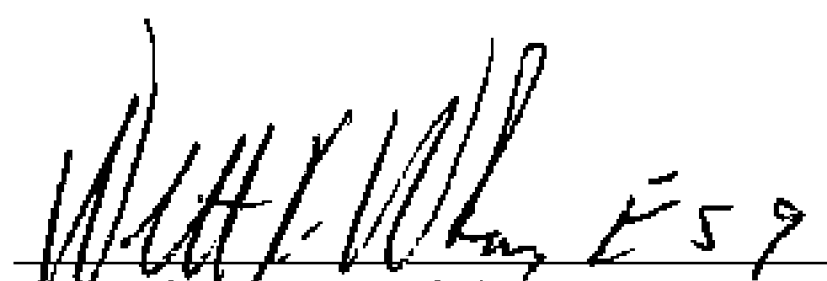
**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,  
POLICE OFFICER CAMACHO, SHIELD NO. 5625, 47<sup>th</sup> POLICE  
PRECINCT, IN HIS INDIVIDUAL AND OFFICIAL CAPACITY. .**

**Defendants,**

**X**

**You are hereby summoned** to answer the Complaint in this action and to serve a copy of your answer or if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service ( or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: May 29, 2022  
Bronx, New York

By  **Welton K. Wisham, Esq.**  
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New York, New York

City of New York Department of Law  
100 Church Street  
New York, New York 10007



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 COUNTY OF BRONX**

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**DANITA ALLEN, ANGELICA ORTIZ, AARON ORTIZ,  
 AND LATIEK FRAZER.**

**Plaintiffs,**

**-against-**

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,  
 POLICE OFFICER CAMACHO, SHIELD NO. 5625, 47<sup>th</sup> POLICE  
 PRECINCT, IN HIS INDIVIDUAL AND OFFICIAL CAPACITY. .**

**Defendants,**

**X**

**COMPLAINT  
 ECF**

Index No.  
 Plaintiffs Designates  
 Bronx County as Place of Trial  
 Jury Trial Demanded

Plaintiffs, by their attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for their Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officer Camacho, who is believed to be assigned to the 47<sup>th</sup> police precinct located at 4111 Laconia Blvd. Bronx, New York.

**PRELIMINARY STATEMENT**

1. The action complained of herein is brought on behalf of the Plaintiffs who suffered emotional distress due to officer Camacho's unreasonable use of force when the Defendant police officer, without treat to himself or others, fired his weapon inside the Plaintiff's residence without legal justification.
2. This action is brought pursuant to 42 U.S.C. Section 1983, as applicable to the Fourth and Fourteenth Amendment to the Constitution of the United States and pursuant to the common law of the State of New York against the Defendants and officer Camacho for the Defendant's

intentional and reckless infliction of emotional distress and property damage surrounding officer Camacho's unjustifiable shooting at Plaintiffs' dog who poses no risk of harm to the officer at the time of the incident.

3. On November 27, 2021, Plaintiff Danita Allen called 911 for medical assistance for her son Aaron Ortiz who was experiencing emotional distress.

4. Aaron has a history of having seizures and was not taking his medication on November 27, 2021, accordingly, Ms. Allen called 911 for professional intervention.

5. That instead of sending Emergency Medical Assistance, several members of the NYPD responded, armed and wearing police uniforms at Plaintiff's residence located at 3579 Fish Ave. Bronx, New York. Apt No. 1.

6. Plaintiffs owned two dogs, one of which was a small pit bull who was secured behind a closed door when the officers went inside Plaintiff's residence in response to the 911 emergency call.

7. That during the visit, the dog got out of one of the rooms and entered the hallway which caused officers to run out from the residence. Officer Camacho however, was not in danger and closed the door and unholstered his weapon and shot at the dog despite the lack of imminent harm.

8. That the shooting was reckless, and unnecessary and caused the Plaintiffs to suffer severe emotional harm for which Plaintiffs now seek remuneration for the reckless and negligent conduct of officer Camacho in accordance with 42 U.S.C Section 198, and pursuant to New York State Law.



### **JURISDICTION AND VENUE**

9. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

10. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C Section 1983, and under Article I Section 12 of the Constitution of the State of New York, and under the Common law of the State of New York.

11. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. Code Section, 1983.

12. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiffs were at all times relevant herein residents of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

### **PARTIES**

13. Plaintiff, Danita Allen at all relevant times was and remains a resident of the State of New York. At the time of the incident complained of, Ms. Allen resided in Bronx, County. Ms. Allen is a citizen of the United States.

14. Plaintiff, Angelica Ortiz at all times relevant within this Complaint resided in the State of New York, Bronx, County. Ms. Ortiz is a citizen of the United States.

15. Plaintiff Aaron Ortiz, at all times relevant herein, was a citizen of the United States and a resident of the State of New York, Bronx, County.

16. Plaintiff Latiek Frazer is also a citizen of the United States and at all times throughout this Complaint was a resident of the State of New York, Bronx , County.

17. The City of New York is a municipal corporation duly organized under the laws of the State of New York.

18. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant, police officer Camacho.

19. The City of New York is responsible for enforcing the rules of the New York City Police Department and for ensuring that the Defendant, officer Camacho, named herein, obey the laws of the State of New York and the laws pursuant to the Constitution of the United States.

20. That at all relevant times the Defendant police officers were acting within the scope of their employment within the New York City Police Department and under color of state law.

21. At all times relevant herein the Defendant officer Camacho was and still remains a police officer employed by the New York City Police Department who acted in the capacity of agent, servant, and employee of the City of New York, New York City Police Department within the scope of his employment on the date of this incident and under color of state law.

### **JURY DEMAND**

22. Plaintiffs demands trial by jury on all issues set forth in this Complaint.

### **NOTICE OF CLAIM**

23. Plaintiffs, in furtherance of their New York State causes of action, filed a timely Notice of Claim, within ninety days of the alleged incident against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.



24. On January 10, 2022,, the Comptroller of the City of New York acknowledge receipt of the Plaintiffs Notice of Claims by assigning Claim numbers, 2022PI000884, 2022PI000888, 2022PI000887, 2022PI000886,respectively to Plaintiffs claims..

25. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claims.

26. This action has been commenced within one year and ninety days in accordance with General Municipal law Section 50-e.

27. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

28. That the Plaintiffs have satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

29. That by reason of the foregoing, Plaintiffs have been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

### **STATEMENT OF FACTS**

30. On November 27, 2021, at approximately 12:18 a.m., Ms. Danita Allen noticed that her son, Aaron was displaying non responsive behavior towards her when she told her son to take his medication to prevent him from occurring a seizure.

31. Aaron had experienced seizures in the past and was diagnosed as being bi polar.

32. Ms. Allen concerned about her son's mental state, decided to call 911 to request emergency medical treatment for her son.

33. Ms. Allen told the 911 operator that her son suffers from seizures and that he was not taking his medication and was unresponsive to his mother's concerns of not taking his medication.

34. In response, the 911 operator asked Ms. Allen whether or not her son had been exhibiting threatening behavior.

35. Ms. Allen informed the operator that Aaron had not threatened anyone and that her son was exhibiting non-threatening behavior.

36. Ms. Allen told the operator that Aaron had not harmed himself, or anyone insider her residence.

37. The operator asked Ms. Allen “**do you need EMS or police**”?

38. Ms. Allen told the operator that **she was requesting EMS personnel and not police** officers.

39. The operator informed Ms. Allen that “help was on the way.”

40. Mr. Latiek Frazer was inside the residence along with Angelica Ortiz.

41. Ms. Allen went back insider her room with her son Aaron and Mr. Frazer as they waited for the Emergency Medical Services assistants.

42. Instead of immediately sending EMS, approximately eight New York City Police officers arrived at the residence in uniforms.

43. The officers were initially outside the apartment standing in the hallway and then all eight officers entered Ms. Allen's residence without consent and without permission of either of the Plaintiffs.

44. Ms. Allen. and Mr. Frazer notice approximately five police officers in the house, two female officers and three male officers.



45. One of the officers asked the Plaintiffs " what's going on"?

46. Ms. Allen informed the officers that her son Aaron was not listening and that he was not taking his mediation.

47. Ms. Allen asked the officers" where is EMS"?

48. The officers stated that EMS was on the way.

49. Ms. Allen asked the officers " Why are there so many police here"? The officers stated that " **This is how we respond, its protocol**"!

50. The officers then went inside the bedroom.

51. Aaron was sitting on a couch next to the door inside the bedroom. Ms. Allen was inside the bedroom along with Mr. Frazer. Mr. Frazer was sitting on the bed.

52. Three police officers surrounded Aaron causing Aaron to start rocking his body, agitated at the presence of the police offices inside his home.

53. The Plaintiffs owned two small dogs. Both of the dogs were kept in a separate room.

54. The dogs began to bark when they heard a noise coming from one of the police officers who had drop his flashlight on the floor startling the animals.

55. The dogs were not attacking any officer present nor were the animals of any threat to any the officers.

56. There were no history of Plaintiffs' dogs having a history of being violent or of attacking anyone.

57. In fact, both dogs were extremely friendly towards children in the neighbor.

58. Officer Camacho, who was standing insider the bedroom heard the dogs bark and immediately pulled his weapon out of his hoister and fired his gun in the direction of the dog who has ran out from one of the rooms inside Plaintiffs' apartment.

59. Plaintiffs were traumatized by the noise from the gun fired by officer Camacho.

60. Plaintiffs stood in total shock and disbelief that a New York City Police Officer would knowingly and willfully discharge his weapon when there was not imminent threat to him or any other officer inside the residence.

61. Officer Camacho's bullet did not hit the dog or anyone else inside Plaintiff's residence.

62. The bullet missed its target and went down to the floor through the floor and the downstairs ceiling where other residents lived.

63. One of the unidentified police officers who witnessed the shooting stated that **"I was in the room with him I don't know why he would do that"**!

64. Angélica became nervous and distraught thinking that the police had shot her brother Aaron.

65. The officers immediately pushed Angelica's door closed prohibiting her from leaving her room.

66. Mr. Frazer began to yell at officer Camacho and asked the officer, " what are you doing"? " You gotta go"!

67. Officer Camacho however, ignored Mr. Frazer's request and stood at the door and would not leave.

68. Plaintiffs observed the bullet casing and the huge hole that Plaintiffs were forced to see as a reminder of the shooting inside their apartment..

69. Ms. Allen was extremely upset and emphatically told officer Camacho that " **this could have been avoided if EMS had responded**". ( **Emphasis added**)



70. Subsequent to the use of deadly force by officer Camacho, approximately forty (40) more New York City Police Officers appeared and entered the Claimant's home to investigate the police shooting.

71. Several police officers remained inside Plaintiffs residence for approximately four (4) hours while the officers questioned the Plaintiffs and the responding officers about the incident.

72. Several police officer went downstairs and began to use a battery ram to enter the downstairs apartment in an attempt to retrieve the bullet. The banging was loud and disruptive and annoying to the Plaintiffs.

73. Detective Defranco from the New York City Police Department's Firearm Investigative Department was one of the officers assigned to investigate officer Camacho's shooting and use of force.

74. An incident report was prepared by the New York City Police Department and assigned Case No. 2021-047-012689.

75. The New York City Police Department however refused to distribute a copy of the incident report to any of the Plaintiffs.

76. This action is brought against officer Camacho for violating Plaintiffs' constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States and in violation of New York State Law.

77. The Defendants are liable to each Plaintiff for the negligent and reckless actions of officer Camacho for which the Plaintiffs now seek financial compensation for their emotional distressed injuries and the deprivation of their liberty.

78. That the shooting incidence constituted an unlawful and unreasonable intrusion and destruction of Plaintiff's individual and property rights under the Constitution and pursuant to

New York State law for the destruction and damage to Plaintiffs home caused by officer Camacho.

79. That Plaintiffs were unreasonably seized by the unreasonable use of force described herein.

80. The police officer fired his weapon with deliberate indifference to Plaintiffs' constitutional rights.

81. That officer Camacho engaged in a wanton, malicious and reckless act with reckless disregard and reckless endangerment of Plaintiffs. Allen, Frazer, Angelical Ortiz and Aaron Ortiz.

82. That officer Camacho discharged his weapon in violation of New York City Police Department Guidelines which restrict the use of force by police officers towards animals by stating that officers “ **shall not discharge their firearms at a dog or other animal except to protect themselves or another person from physical injury and there is no other reasonable means to eliminate the threat .”**NYPD Annual Firearm Report.\\

83. Upon information and belief, The NYPD intentionally killed nine dogs during calendar year 2014.

84. Plaintiffs suffered severe emotional distress, pain and suffering from the officer's unreasonable use of force in discharging his firearm at Plaintiff's dog without an imminent threat of physical injury and in direct violation of NYPD policy.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST OFFICER CAMACHO FOR VIOLATING PLAINTIFFS ' FOURTH AND FOURTEENTH AMENDMENT RIGHTS TO BE FREE FROM UNREASONABLE SEIZURE PURSUANT TO 42 U.S.C. SECTION 1983**



85. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 84”, with the same force and effect as though more fully set forth at length herein

86. The New York City Police Department has a recognized policy authorizing use of force by members of the service in discharging firearms aimed at dogs or animals which states that police officers “ **shall not discharge their firearms at a dog or other animal except to protect themselves or another person from physical injury and there is no other reasonable means to eliminate the threat.**” (Emphasis added)

87. That officer Camacho violated the policy set forth by the New York City Police Department when he fired his weapon at Plaintiff’s dog without legal justification endangering the health, safety and welfare of the Plaintiffs which caused Plaintiff to suffer undue emotional distress.

88. Officer Camacho had no reasonable basis of fear from the dog at the time he fired his weapon.

89. Officer Camacho was in a separate room with Aaron Ortiz.

90. Neither of Plaintiffs’ dogs entered the room with officer Camacho , nor did any dog chase officer Camacho inside the room with the Plaintiffs, yet officer Camacho chose to discharge his weapon in violation of NYPD policy and with deliberate indifference to the risk of harm to the Plaintiffs .

91. No weapons were inside the Plaintiff’s home at the time of the 911 phone call.

92. That six or eight New York City Police officers arrived at the Plaintiff’s home in response to the 911 call.

93. Plaintiff Allen called for emergency medical assistance for her son, Aaron, not for the NYPD.

94. The City of New York was well aware of the risk to public safety in sending police officers into the homes of members of the public that called 911 for mental health assistance.

95. New York City has seen an enormous increase in 911 calls for mental health assistance.

96. That in response to such calls, the City of New York enacted a policy to send trained mental health professionals into those homes that had requested emergency mental health assistance.

97. The policymakers enacted reforms in response to the overwhelming police force involved in response to calls for mental health assistance.

98. The Mayor of New York City's Office of Criminal Justice, the New York City Police Department, the Fire Department and City Health officials were all part of the reforms to address emergency calls relative to mental health issues.

99. The City Health Department, made part of the reforms, added approximately eight additional Health Engagement Assessment Teams, peers paired with mental health clinicians who handle non-emergency calls.

100. Ms. Allen was aware of the policy set forth above when she informed the 911 operator that her son was non-threatening and was not taking his medication.

101. Ms. Allen expected mental health professionals to come to her home to render mental and medical assistance to her son Aaron. Instead eight police officers barged their way inside the Plaintiff's home without consent of the Plaintiffs.

102. The Plaintiffs did not give consent to the officers to enter their apartment.

103. Plaintiffs' dog exhibited no threat to the officers..



104. Yet, without warning,, officer Camacho fired his weapon without threat of injury to himself or to the other officers.

105. The bullet fired by officer Camacho missed the dog and entered the floor of the hallway inside Plaintiffs' residence.

106. Plaintiffs were forced to look at the huge whole in the floor of their home due to the negligence of the City of New York to make repairs to the area destroyed by the officers' bullet.

107. Officer Camacho fired his weapon in complete disregard to the risk of serious injury to the Plaintiffs.

108.. Officer Camacho violated Plaintiffs' Fourth Amendment right against unreasonable seizure in direct contravention to the New York City Police Department Guidelines when he fired his weapon inside Plaintiffs home endangering the lives of each of the Plaintiffs who were not free to move..

109. That at the time the officer fired his weapon the dog posed no imminent threat to the Defendant police officer.

110. That based on the totality of the circumstances no reasonable objective police officer would have discharged his or her weapon inside a home occupied by an individual known to have had emotional issues as described herein.

111. Officer Camacho made to effort to ascertain whether or not other family members inside Plaintiff's residence were in the line of fire at the time the officer fired his weapon in the direction of the dog that was not in front of the officer nor was the dog charging towards the officer at the time of the shooting.

112. That as a direct and proximate cause of the acts committed by the Defendant officer, Plaintiffs have suffered severe emotional distress, past, present, and future, in an amount that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK  
FOR AN UNCONSTITUTIONAL DE FACTO POLICY AND PRACTICE OF FAILING  
TO TRAIN POLICE OFFICERS IN DISCHARGING FIREARMS TOWARDS  
ANIMALS PURSUANT TO 42 U.S.C SECTION 1983.**

113. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 112”, with the same force and effect as though more fully set forth at length herein

114. That the acts committed by police officer Camacho of firing his weapon inside the residence of the Plaintiff as set forth herein was a direct consequence of the de facto practice and policies by the City of New York in failing to properly train New York City Police officers in the use of deadly force aimed towards dogs and animals.

115. The NYPD has set forth the standard for the use of force by members of the service when confronted by dogs, the NYPD has been deliberately indifferent to training police officers in the proper use of force under situation involving the once confronted by the officers involved in the instant incident..

116. That the practice of ignoring the guidelines provided in the NYCPD Patrol Guide was widespread and deliberately indifferent to the rights of the Plaintiffs and of individuals that the NYPD officers are likely to encounter.

117. That the repeated constitutional violations establishes a clear need for additional and proper training for New York City Police officers in discharging their weapons involving dogs.

118. As a consequence the Plaintiffs have be injured thereof.



**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW YORK  
PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK FOR  
RESPONDEAT SUPERIOR.**

119. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “118”, with the same force and effect as though more fully set forth at length herein.

120. That at all relevant times the officers in the instant action acted under color of state law and within the scope of their employment.

121. The acts described more fully in the preceding paragraphs were committed without authority of law and constituted an abuse of power and authority vested by the State of New York and by the City of New York..

122. That the conduct of officer Camacho occurred during the scope of his employment with the City of New York Police Department and under color of state law as an employee, and agent of the City of New York.

123. The City of New York is therefore liable to Plaintiffs for the reckless and negligent actions of officer Camacho who recklessly fired his weapon in complete disregard to the lives, safety and welfare of the Plaintiffs causing Plaintiffs to suffer severe pain and suffering and emotional distress.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT POLICE  
OFFICER CAMACHO FOR THE INTENTIONAL INFLECTION OF EMOTIONAL  
DISTRESS OF THE PLAINTIFFS PURSUANT TO THE COMMON LAW OF THE  
STATE OF NEW YORK**

124. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “123” with the same force and effect as though more fully set forth at length herein

125. That this action is brought against officer Camacho who carelessly and recklessly and intentionally discharged his firearm without threat to himself as he was standing inside a room and shot Plaintiff's dog that did not charge towards the Defendant officer.

126. Officer Camacho fired his firearm towards Plaintiff's dog who was not inside the room when officer Camacho fired his weapon nor was the dog running towards officer Camacho at the time the Defendant fired his weapon.

127. That at no time during the incident complained of did Plaintiffs' dog run towards or leap at the officer who fired his weapon without the imminent threat of being attacked by Plaintiffs' dog.

128. That officer Camacho intentionally, recklessly, and carelessly fired his weapon with deliberate indifference to the life, safety and welfare of Plaintiffs Danita Allen, Angelica Ortiz, Latiek Frazer and Aaron Ortiz..

129. That by reason of the foregoing, Plaintiffs have suffered mental and emotional distress due to Defendants' unlawful and reckless actions as more fully described herein.

130. That Plaintiffs' claim for Intentional Infliction of Emotional Distress was caused by Officer Camacho who knowingly and willfully, without reason, privilege or probable cause, fired his weapon endangering the lives and welfare of the Plaintiffs.

131. That officer Camacho's misconduct as more fully described above was extreme and outrageous and intended to cause severe emotional distress to the Plaintiffs.

132. That as a direct and proximate result of the misconduct and abuse of authority Plaintiffs have been injured and has sustained the damages hereinbefore alleged.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT  
POLICE OFFICER CAMACHO FOR NEGLIGENT INFLICTION OF  
EMOTIONAL DISTRESS PURSUANT TO THE COMMON LAW OF THE STATE  
OF NEW YORK**



133. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “132” with the same force and effect as though more fully set forth at length herein

134. That officer Camacho as a member of the New York City Police Department owed a duty to the Plaintiffs to use reasonable care in the performance of his public function as a police officer in the City of New York..

135. That officer Camacho breached his duty to the Plaintiffs by firing his weapon without direct threat of being attacked by Plaintiff’s dog who was not running towards the officer and posed no threat.

136. As a result of the negligent acts of officer Camacho, Plaintiffs suffered severe emotional distress and mental trauma.

**WHEREFORE,** Plaintiffs demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiffs compensatory damages in an amount that is fair and equitable to be fixed at trial.

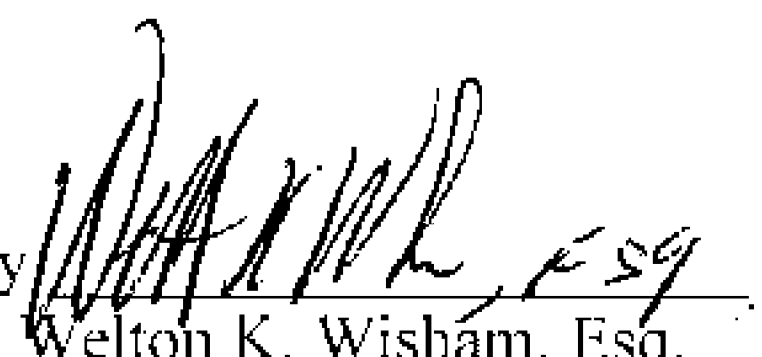
B. Awarding punitive damages to Plaintiffs in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter officer Camacho from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to Plaintiffs for the costs and disbursements associated with this action herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated; May 29, 2022  
Bronx, New York

By   
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**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

**X**

**DANITA ALLEN, ANGELICA ORTIZ, AARON ORTIZ,  
AND LATIEK FRAZER.**

**AFFIRMATION**

**Plaintiffs,**

**-against-**

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,  
POLICE OFFICER CAMACHO, SHIELD NO. 5625, 47<sup>th</sup> POLICE  
PRECINCT, IN HIS INDIVIDUAL AND OFFICIAL CAPACITY..**

**Defendants,**

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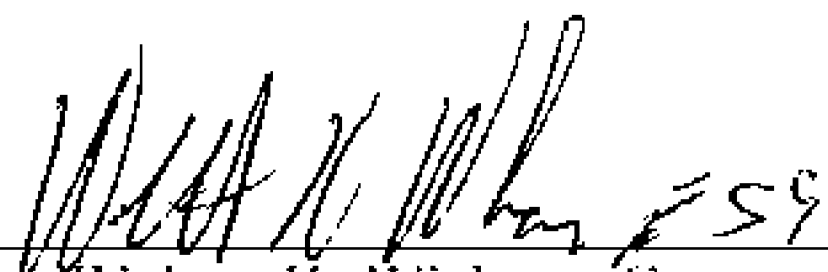
**I, Welton K. Wisham**, am an Attorney at Law duly admitted to practice law in the Courts of the State of New York. and say under penalty of perjury that: I am the attorney of record for the Plaintiffs, Danita Allen, Angelica Ortiz, Aaron Ortiz, and Latiek Frazer.

That I have read the annexed Summons and Complaint and know the contents hereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is base upon information contained within my case file and the investigation conducted with the Plaintiffs.

The reason I make this affirmation instead of the Plaintiffs is that the Plaintiffs reside in a county outside that which this affiant maintains an office.

Dated: May 29, 2022  
Bronx, York, New York

By   
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